

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index No.:

-----X
DESTINI VASQUEZ,

Date Filed:

Plaintiff,

SUMMONS

- against -

Plaintiff designates
Richmond County
as the place of trial.

P.O. MERLIN SAHMANOVIC, SHIELD #3536., P.O.
JOHN/JANE DOE, NEW YORK POLICE DEPARTMENT
AND/OR THE CITY OF NEW YORK,

The basis of venue is:
Place of Occurrence

Defendants,

-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 28, 2024

To:

Yours, etc.,

CITY OF NEW YORK
100 Church Street,
New York, New York 10007

MEIROWITZ & WASSERBERG, LLP

P.O. MERLIN SAHMANOVIC,
SHIELD #3536
1 Police Plaza
New York, NY 10007

/s/ *Laurita Rodriguez*

New York Police Department
1 Police Plaza
New York, NY 10007

LAURITA RODRIGUEZ
Attorney for Plaintiff
DESTINI VASQUEZ
332 E. 149th Street, Suite 201
Bronx, New York 10451
(646) 661-1221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
DESTINI VASQUEZ,

Plaintiff,

- against -

Index No.:

Date Filed:

**VERIFIED
COMPLAINT**

P.O. MERLIN SAHMANOVIC, SHIELD #3536., P.O.
JOHN/JANE DOE, NEW YORK POLICE DEPARTMENT
AND/OR THE CITY OF NEW YORK,

Defendants.

-----X
Plaintiff, **DESTINI VASQUEZ**, by her attorneys, **MEIROWITZ & WASSERBERG,**

LLP complaining of the Defendants, respectfully sets forth and alleges, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of the Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On May 26, 2023, at approximately 7:10 P.M., Plaintiff lawfully present inside of 236 Richmond Valley Road, Staten Island, New York 10309, in the County of Richmond, State of New York when **P.O. MERLIN SAHMANOVIC, SHIELD #3536 (hereinafter "P.O. SAHMANOVIC")** and **NYPD OFFICERS JOHN DOE #1-5, POLICE OFFICERS (hereinafter "P.O. JOHN/JANE DOES #1-5")** unlawfully stopped, searched, and falsely arrested Plaintiff without probable cause or legal justification. In addition, Plaintiff suffered mental and emotional injury. The Plaintiff was unlawfully searched and imprisoned by defendants for at least (24) hours before being released. All charges against Plaintiff were dismissed. Plaintiff was deprived of her Federal Constitutional rights when the individual defendants unlawfully stopped,

questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied her right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CONDITIONS PRECEDENT TO SUIT

2. That prior to the institution of this action, a Notice of Claim was filed and served upon defendants within ninety (90) days after the claim herein accrued.

3. That at least thirty (30) days have elapsed since the service of such Notice of Claim and adjustment of payment thereof has been neglected or refused.

4. That on December 22, 2023, Plaintiff testified at a statutory hearing, pursuant to General Municipal Law Section 50-h.

5. That this action is being commenced within one year and ninety days after the causes of action herein accrued.

PARTIES

6. Plaintiff, **DESTINI VASQUEZ** is a resident of the County of Bronx, State of New York.

7. That at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK** (hereinafter “**CITY**”), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

8. That at all times hereinafter mentioned, defendant, **CITY** operated, maintained, managed, supervised, and controlled a police department as part of and in conjunction with its municipal functions.

9. At all relevant times herein, the New York City Police Department (“**NYPD**”) was a wholly owned subsidiary which was further wholly operated, managed, maintained, and

controlled by Defendant **CITY**.

10. That at all times herein mentioned, defendant, **P.O. SAHMANOVIC**, was and is a police officer of the defendant, **CITY**, was acting within the course and scope of his employment with defendant, **NYPD** and was acting under the color of law.

11. That at all times herein mentioned, defendants, **P.O. JOHN/JANE DOES #1-5** from the 123rd Police Precinct are fictitious names intended to designate **NYPD** officers involved in the arrest of Plaintiff, and said Defendants were and are police officers of defendant, **CITY**, were acting within the scope of their employment with defendant, **NYPD** and were acting under the color of law.

12. At all relevant times herein, defendant, **CITY**, acting through the **NYPD**, was responsible for the policy, practice, supervision, implementation, and conduct of all **NYPD** matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all **NYPD** personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers, officials or policy makers, as well as the individually named **NYPD** defendants herein.

13. At all relevant times herein, defendant, **CITY**, was responsible for enforcing the rules and regulations of the **NYPD**, and for ensuring that the **NYPD** personnel obey the laws and constitutions of the United States and the State of New York.

STATEMENT OF FACTS

14. On May 26, 2023, at approximately 7:10 P.M., Plaintiff, **DESTINI VASQUEZ**, was lawfully present inside of 280 Marsh Avenue in the County of Richmond, State of New York when defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**, unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

15. At the above time and place, Plaintiff did not possess weapons, stolen property, or any contraband whatsoever.

16. For no reason at all, defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** apprehended Plaintiff while she was lawfully inside of the aforementioned location as a patron of a bowling alley.

17. Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** without any cause or reason, ordered Plaintiff to put her hands behind her back, handcuffed Plaintiff, and placed her under arrest.

18. Plaintiff was transported to the 123rd Police Precinct, located at 116 Main Street, Staten Island, New York 10307.

19. At the 123rd Police Precinct, Plaintiff was fingerprinted and photographed by defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**.

20. Approximately twenty four (24) hours after Plaintiff's illegal arrest, defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**, gave Plaintiff a Desk Appearance Ticket (DAT) summoning her to appear in Richmond County Criminal Court.

21. On or about May 26, 2023, defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** submitted false information to the Richmond County District Attorney's Office, resulting in Plaintiff's unlawful prosecution.

22. Specifically, defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** falsely informed prosecutors in the Richmond County District Attorney's Office that Plaintiff, while acting in concert with another individual stole a credit card and was in possession of said stolen property.

23. On or about June 15, 2023, Plaintiff appeared before a judge of the Criminal Court of the City of New York, Richmond County and formally charged via criminal complaint under Docket #CR-003216-23RI with P.L. § 155.30(4) Grand Larceny in the Fourth Degree, P.L. § 165.45(2) Criminal Possession of Stolen Property in the Fourth Degree, P.L. § 165.45(2) Petit Larceny, and P.L. § 165.40) Criminal Possession of Stolen Property in the Fifth Degree. 28.

24. On or about November 21, 2023 Plaintiff was granted an Adjournment in Contemplation of Dismissal (ACD). Subsequently, Plaintiff's case was dismissed and sealed.

25. Plaintiff attended multiple court dates from the time of arraignment to the date of dismissal.

26. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

27. At no point did defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** recover stolen property and/or any other illegal contraband from Plaintiff or from a location that was in the Plaintiff's possession, custody, or control.

28. Plaintiff was unlawfully arrested and handcuffed by defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** without legal justification or probable cause, Plaintiff was unlawfully fingerprinted, photographed and searched, and unlawfully detained.

29. Some of the Defendant Officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

30. That as a result of the aforementioned actions of defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

31. That all of the causes of action asserted herein fall within one or more of the exceptions set forth in CPLR §1602.

FIRST CAUSE OF ACTION

False Arrest/Imprisonment

32. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

33. That as a result of the foregoing, Plaintiff was without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause and/or without warrant resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff.

34. That defendants, Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed, and seized Plaintiff without her consent and said actions were not privileged by law.

35. That the aforesaid actions by Defendants constitute a false arrest and false imprisonment in violation of Plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

36. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great

distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

SECOND CAUSE OF ACTION

Assault

37. Plaintiff, **DESTINI VASQUEZ**, repeats, reiterates, and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

38. That as a result of the foregoing, Defendants, individually and/or vicariously, by and through their agents, servants, and employees, place Plaintiff in apprehension of imminent, harmful, and offensive contact, thereby committing an assault upon her.

39. That the aforesaid actions by Defendants were unjustified and unnecessary in the performance of their duties as police officers and were unreasonable and unwarranted and constituted an excessive use of force.

40. That the aforesaid actions by Defendants constitute an assault in violation of plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

41. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

THIRD CAUSE OF ACTION**Battery**

42. Plaintiff, **DESTINI VASQUEZ**, repeats, reiterates, and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

43. That as a result of the foregoing, Plaintiff **DESTINI VASQUEZ** was without just cause or provocation, maliciously and intentionally battered and physically abused causing serious physical and psychological harm to plaintiff.

44. That at the time and place aforesaid, Defendants, individually and/or vicariously by and through their agents, servants, and/or employees, without just cause of provocation, maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff.

45. That the aforesaid actions by Defendants were unjustified and unnecessary in the performance of their duties as police officers and were unreasonable and unwarranted and constituted an excessive use of force.

46. That the aforesaid actions by Defendants constitute a battery in violation of Plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

47. That as a result of the aforementioned actions of Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

FOURTH CAUSE OF ACTIONViolation of Fourth Amendment Rights:
Unlawful Search

48. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

49. Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**, while acting in concert and within the scope of their authority, caused Plaintiff to be unlawfully searched without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable search under the Fourth Amendment of the Constitution of the United States.

50. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

FIFTH CAUSE OF ACTION*42 U.S.C §1983 violations of Fourth and Fourteenth Amendments*

51. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

52. That Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**, under the color of law and with the indicia of authority of Defendant **CITY** and Defendant **NYPD**, violated Plaintiff's constitutional rights to be free from the unreasonable and unnecessary use of excessive force, unreasonable seizures, and to bodily integrity.

53. That Defendants are also liable under 42 U.S.C §1983 for failing to intervene to prevent the actions of the Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** who assaulted plaintiff during her unlawful arrest.

54. That the aforementioned actions of Defendants deprived the Plaintiff of the following rights under the United States Constitution:

- a. Freedom of summary punishment;
- b. Freedom of cruel and inhuman punishment;
- c. Freedom from illegal search and seizure; and
- d. Freedom from false arrest;

55. That defendant subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights secured by the Fourth and Fourteenth Amendments of the United States Constitution, in violation of 42 U.S.C §1983, for which the individual defendants are liable.

56. That each of the Defendants' actions directly and proximately caused Plaintiff to suffer severe and permanent injuries of a physical and psychological nature.

57. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

SIXTH CAUSE OF ACTION*Monell Claim*

58. Plaintiff, **DESTINI VASQUEZ**, repeats, reiterates, and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

59. That prior to May 8, 2018, and since, Defendant **CITY** has permitted and tolerated a pattern and practice of unjustified, unreasonable, and illegal use of force against civilians by police officers of its police department and illegal arrest by police officers of its police department. Although such illegal use of force was improper, the officers involved were not prosecuted, disciplined, or subject to restraint, and such incidents were in fact covered up with official claims that the use of force was justified and proper. As a result, police officers of defendant **CITY** were caused and encouraged to believe that civilian person could be abused under the circumstances not requiring the use of excessive force, and that such conduct would in fact be permitted by the defendant **CITY**.

60. That in addition to permitting a pattern and practice of abuse of civil persons, defendant **CITY** has failed to maintain a proper system for investigation of all incidents of unjustified beatings and excessive use of force by police officers.

61. That defendant **CITY** has maintained a system of review of unjustified and excessive use of force, and illegal arrest by police officers that has failed to identify the improper use of force by police officers and failed to subject officers who assault citizens to discipline, closer supervision or restraint and who illegally arrested citizens, to the extent that it has become the custom of defendant **CITY** to tolerate the improper, illegal arrest and other wrongful actions by police officers.

62. The upon information and belief, specific flaws in the defendant **CITY's** use of force review process include, but not limited to, the following:

- a. Preparing reports regarding investigations of excessive force claims as routine point-by-point justifications of the police officer's actions, regardless of whether such actions are justified;
- b. Police officers investigations of excessive force claims systematically fail to credit testimony by non-police officer witnesses, and uncritically rely on reports by police involved in the incident;
- c. Police officers investigating excessive force claims failing to include in their reports relevant factual information which would tend to contradict the statements of the police officers involved;
- d. Reports in use of force cases are not reviewed for accuracy by supervisory officers. Conclusions are frequently permitted to be drawn on the basis of clearly incorrect, contradictory, or incomplete information.

63. That the aforesaid acts, omissions, system flaws. Policies, and customs of the Defendant **CITY** cause police officers of its police department to believe that excessive force and other improper actions would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers would make likely use excessive force in situations where such force is neither necessary nor reasonable.

64. That as a direct result of the aforesaid acts, omissions, systemic flaws, policies, and customs of the defendant **CITY**, and defendants **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** unjustifiably assaulted and detained plaintiff all in violation of her civil and constitutional rights, plaintiff was deprived of her liberty, was subjected to great indignity,

humiliation, pain and great distress of mind and body and was help up to scorn and ridicule, was injured to her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and the said plaintiff has been otherwise damaged.

65. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

SEVENTH CAUSE OF ACTION

*Violation of Fifth and Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process*

66. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Richmond County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Richmond County District Attorney's Office.

70. In withholding/creating false evidence against Plaintiff, and in withholding/providing information with respect thereto, Defendants violated Plaintiff's right to a

fair trial and to due process under the Due Process Clauses of the Fifth and Fourteenth Amendments to the Constitution of the United States.

71. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

72. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

73. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

74. Defendants commenced and continued criminal proceedings against Plaintiff.

75. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

76. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

77. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

NINTH CAUSE OF ACTION*Failure to Intervene*

78. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

79. The Defendants that did not physically touch Plaintiff but were present when other police officers violated Plaintiff's constitutional rights, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other police officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, Plaintiff suffered significant injuries to her wrists, her liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

82. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

84. That as a result of the aforementioned actions of the Defendants, Plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was help up to scorn and ridicule, was injured in her character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and said Plaintiff has been otherwise damaged.

TENTH CAUSE OF ACTION*Negligence, Negligent Hiring and Supervision*

85. Plaintiff, **DESTINI VASQUEZ**, repeats and realleges all of the allegations contained in the proceeding paragraphs with the same force and effect as if set forth more fully herein.

86. That Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**, acting within the scope of their employment, negligently discharged their duties by failing to exercise a reasonable degree of care, and thereby caused Plaintiff to sustain the injuries and deprivations aforementioned.

87. That the acts of negligence of Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** include, but are not limited to, forcibly detaining Plaintiff, failing to prevent clear violations of constitutional rights, and other conduct that was improper under the circumstances.

88. That the aforesaid actions by Defendants, **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** violate the Patrol Guide, including but not limited to, Arrest Procedure policies.

89. That Defendant **CITY** is responsible for the negligence of its officers committed within the scope of their employment.

90. That the Defendant **CITY** was negligent in that prior to and at the time of the acts complained of herein, due to prior history of Defendants **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5**, Defendant **CITY**, knew or should have known of the bad disposition of **P.O. SAHMANOVIC** and/or **P.O. JOHN DOES #1-5** or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by Defendant **CITY** and that due to their

lack of training, these officers should have had adequate supervision so that they would not arrest and falsely imprison innocent individuals.

91. That the Defendant **CITY** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and a search warrant and where individual, especially as here, has not committed a crime and has not resisted arrest, that it police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

92. That the Defendant **CITY** is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the plaintiff herein can be arrested.
2. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

93. That the aforementioned actions by Defendants directly and proximately caused severe physical and psychological injuries to Plaintiff.

WHEREFORE, Plaintiff, **DESTINI VASQUEZ**, demands judgment against the Defendants, together with the cost and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages, and attorney fees pursuant to 42 U.S.C §1988.

Dated: Bronx, New York
June 28, 2024

MEIROWITZ & WASSERBERG, LLP

/s/ *Laurita Rodriguez*

By:

LAURITA RODRIGUEZ

Attorneys for Plaintiff

DESTINI VASQUEZ

332 E. 149th Street, Suite 201

Bronx, New York 10451

(646) 661-1221

ATTORNEY'S VERIFICATION

LAURITA RODRIGUEZ, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the truth of the following statements under the penalties of perjury:

Affirmant is the attorney of record for plaintiff **DESTINI VASQUEZ** in the within action.

Affirmant has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof.

The same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true.

The grounds of affirmant's belief as to all matters not stated upon affirmant's own knowledge are as follows: investigation and information received by affirmant in the course of her duties as attorney for the said Plaintiff.

Dated: Bronx, New York
June 28, 2024

MEIROWITZ & WASSERBERG, LLP

/s/ *Laurita Rodriguez*

By: _____

LAURITA RODRIGUEZ

Attorney for Plaintiff

DESTINI VASQUEZ

332 E. 149th Street, Suite 201

Bronx, New York 10451

(646) 661-1221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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DESTINI VASQUEZ,

Plaintiff,

-against-

INDEX NO.:

P.O. MERLIN SAHMANOVIC, SHIELD #3536., P.O.
JOHN/JANE DOE, NEW YORK POLICE DEPARTMENT
AND/OR THE CITY OF NEW YORK,

Defendants.

-----X

SUMMONS & VERIFIED COMPLAINT

MEIROWITZ & WASSERBERG, LLP

Attorney for Plaintiff

332 E. 149th Street, Suite 201

Bronx, New York 10017

(646) 661-1221

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Laurita Rodriguez

Dated: Bronx, New York
June 28, 2024

Signed: _____
Laurita Rodriguez, Attorney for Plaintiff

Service of a copy the within Summons & Verified Complaint is hereby admitted.

Dated: _____